



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing two judgments on Tuesday 2 April 2019 and 17 judgments and / or decisions on Thursday 4 April 2019.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 2 April 2019

[Aboya Boa Jean v. Malta \(application no. 62676/16\)](#)

The applicant, Serge Aboya Boa Jean, is a national of the Ivory Coast who was born in 1978.

The case concerns his immigration detention in Safi Barracks detention centre in Malta for two months in 2016.

Mr Aboya Boa Jean arrived in Malta by plane in September 2016. Presenting his national passport, he told the immigration authorities that he was recognised as a refugee in Armenia and intended to seek asylum in Malta.

He was however denied entry and placed in immigration detention on the ground that he might abscond before the authorities could examine his asylum application.

In October 2016 the immigration Appeals Board confirmed the legality of his detention, specifying that his refugee status in Armenia had not yet been determined and that he had been found in possession of a travel ticket for Italy and a forged Italian passport. Within the same month, other courts also upheld the legality of his detention.

He was released from immigration detention on 8 November 2016, and had to report to a police station daily.

Relying on Article 5 § 1 (right to liberty and security) of the European Convention on Human Rights, Mr Aboya Boa Jean alleges that his detention was unlawful and arbitrary. Further relying on Article 5 § 4 (right to have lawfulness of detention decided speedily by a court), he also alleges that the remedy available to him to challenge his detention was not speedy or effective.

[Dimopulos v. Turkey \(no. 37766/05\)](#)

The applicant, Ms Agathi Teodora Dimopulos, is a Turkish national who was born in 1976 and lives in Thessaloniki (Greece).

The case concerns a request for the reassignment of property classified as a “natural site”, which was assigned to the Treasury when the land-use plan was amended.

Ms Dimopulos had inherited property on the Turkish island of Gökçeada (Imroz), which was classified as “land for building” and located at Yeni Mahelle Kuzulimanı. The property was also classified as a “natural site”.

On 3 January 1997, following a review of the land-use plan, the property was listed on the land register in the name of the Treasury. On 18 June 2003, Ms Dimopulos brought proceedings seeking the annulment of the property deed in the Treasury's name and the assignment of the land to her.

On 27 July 2004 section 11 of Law no. 2863 on the protection of cultural and natural heritage was amended. The new provision stated that land classified as a “natural site” could not be acquired by way of adverse possession. In a judgment of 26 October 2004 the domestic court dismissed the applicant’s request, finding that it was not necessary to examine the conditions of adverse possession, on the grounds that it was no longer possible to acquire a natural or cultural site by adverse possession since the July 2004 legislative reform. As a public policy rule, the legislative amendment was applicable to pending cases which had not been settled by a final decision.

Ms Dimopulos lodged an appeal on points of law disputing the refusal she had met with following the legislative amendment which post-dated the bringing of her civil action. The Court of Cassation dismissed her appeal, then her request for rectification of the judgment.

Relying in particular on Article 6 § 1 (right to a fair trial), the applicant alleges that the retroactive application of a legislative amendment to her case constitutes a breach of her right to a fair hearing.

Thursday 4 April 2019

[G.S. v. Bulgaria \(no. 36538/17\)](#)

The applicant, Mr G.S., is a Georgian national who was born in 1951. He is currently detained in Sofia Prison pending his extradition to Iran on theft charges.

The case concerns his complaint that if extradited to Iran, he would be at risk of being flogged.

In December 2016, while travelling from Georgia, Mr G.S. was arrested at Sofia Airport on the basis of an Interpol red notice. According to the red notice, he had stolen 50,000 euros in 2016 from a foreign-exchange office in Teheran.

He was detained pending receipt of a formal extradition request from the Iranian authorities. The request arrived in January 2017 and extradition proceedings were opened in the Sofia City Court.

In April 2017 the court allowed the extradition request, finding that it met all the formal requirements and that it was permissible to proceed on the basis of the *de facto* reciprocity between Bulgaria and Iran. It also noted that the Iranian authorities had given assurances that the applicant would not face torture or inhuman treatment and that Iranian law only envisaged imprisonment for the alleged offence. The decision was upheld on appeal.

The applicant’s extradition was, however, stayed in May 2017 on the basis of an interim measure granted by the European Court of Human Rights under Rule 39 of its Rules of Court, which indicated to the Bulgarian Government that the applicant should not be extradited for the duration of the proceedings before it.

Relying on Article 3 (prohibition of torture and inhuman or degrading treatment), Mr G.S. alleges in particular that the Bulgarian authorities had not assessed the risk of his being ill-treated if extradited to Iran, even though it was well-known that the punishment for theft in that country was up to 74 lashes.

[Hodžić v. Croatia \(no. 28932/14\)](#)

The applicant, Šemso Hodžić, is a dual national of Bosnia and Herzegovina and Croatia who was born in 1952.

The case concerns his confinement in a psychiatric hospital.

In May 2012 Mr Hodžić was arrested and detained in connection with a suspicion of making two threats by telephone against two persons. In the course of the investigation a psychiatric expert, E.S., submitted her report on the applicant’s mental health, which stated that he suffered from paranoid schizophrenia. She found that he posed a danger to others which warranted his being

placed in a psychiatric facility. In August 2012 E.S. had to produce a supplement to her report which included more medical documentation concerning Mr Hodžić's previous psychiatric treatment. She reiterated her previous opinion on the basis of the new records.

Meanwhile, Mr Hodžić was released from pre-trial detention because the maximum period had expired. At a hearing before the Zagreb Municipal Criminal Court in December 2012, he asked that his psychiatrist and his general practitioner and other witnesses also be heard since they could all give evidence about his mental state. However, in January 2013 the court decided that he should be placed in a psychiatric hospital for six months as he had committed the offence of making serious threats while lacking mental capacity. It found that the medical reports produced by Mr Hodžić's psychiatrist were unreliable as they contradicted the findings of the expert witness E.S.

An appeal by Mr Hodžić and a constitutional complaint were both rejected.

After the Zagreb court's judgment became final, Mr Hodžić went to Sarajevo in Bosnia and Herzegovina, where he was examined by two experts in forensic psychiatry and a psychologist. They found he had various mental disorders, but not paranoid schizophrenia. In October 2013 a judge at Zagreb County Court ordered that he be sent to the psychiatric hospital. He appealed, referring to the new expert report, but the court dismissed his appeal as there was nothing in his arguments to raise doubts about the necessity for his committal, as established by the Municipal Criminal Court.

Mr Hodžić is still at large as the domestic authorities have not been able to locate him.

Relying on Article 6 § 1 (right to a fair trial) and Article 5 §§ 1 (e) and 4 (right to liberty and security / right to have lawfulness of detention decided speedily by a court) the applicant complains of a lack of fairness in the proceedings leading to the order to place him in a psychiatric hospital.

[Szalontay v. Hungary \(no. 71327/13\)](#)

The applicant, Győző Szalontay, is a Hungarian national who was born in 1974 and lives in Kecskemét (Hungary).

The case concerns his complaint that his trial on negligence charges, which received wide media coverage, was not fair and his argument that he was not obliged to lodge a constitutional complaint before applying to Strasbourg.

In January 2011 Mr Szalontay's company agreed to lease out premises for a musical event to another company. A stampede broke out during the event and three people were crushed to death.

Mr Szalontay was prosecuted and found guilty in June 2012 of causing death by negligence. Among other things, the court found that the applicant and other organisers of the event had not carried out an assessment of how safely to evacuate people from the venue.

The court imposed a prison sentence of two years and eight months on the applicant. On appeal, the Budapest High Court increased Mr Szalontay's prison sentence to three years and four months, suspending half of it for two years.

The appeal court dismissed defence arguments about procedural shortcomings during the trial, including as regards defence questioning of witnesses and experts. The applicant did not challenge any of the judges for bias during the proceedings or lodge a constitutional complaint.

The applicant complains that the court proceedings did not meet the requirements of Article 6 § 1 (right to a fair trial).

[Kunert v. Poland \(no. 8981/14\)](#)

The applicant, Wojciech Kunert, is a Polish national who was born in 1973 and lives in Wrocław (Poland).

The case concerns conditions of detention and an alleged denial of access to court.

Mr Kunert was detained in Wrocław Remand Centre for various periods between 1991 and 2014, including from June 2009 to October 2010. During his detention, between 29 July and 26 August 2009 he was held in overcrowded cells in which the space per person was below the Polish statutory minimum standard of 3 sq. m.

In April 2011 he brought a civil claim before the courts against the State Treasury for infringement of his personal rights and for compensation on account of his detention in overcrowded cells. In the course of the proceedings the court rejected an application for legal aid but instructed him that all pleadings should be submitted in two copies.

In October 2012 the Wrocław-Śródmieście District Court dismissed his claim. The court found that the applicant's cells had indeed been overcrowded for approximately one month, but that he had failed to demonstrate that the defendant's actions had been unlawful.

On 10 October 2012, he lodged a letter with the court which it treated as an appeal, however, there was only one copy of it. In December 2012 Mr Kunert lodged a request for leave to appeal out of time against the judgment, as well as two copies of a letter entitled "appeal".

The court dismissed the applicant's request for leave to appeal, and explained that he had already lodged his appeal on 10 October 2012. It further issued an order and instructed him to comply with the formal requirements of his appeal by submitting a copy of it within seven days.

Shortly afterwards, Mr Kunert submitted a letter in which he informed the court that he was unable to comply with the order because he did not have the text of his appeal that he could copy or rewrite and he did not remember the exact wording. He added that he had not been aware that he should have submitted his appeal in two copies. However, in March 2013 the court rejected his appeal for failure to submit an exact copy of it.

An interlocutory appeal by Mr Kunert was dismissed on the grounds that he, the person who had started a civil action and had known that he had been deprived of his liberty, could justifiably be expected to keep copies of all letters he sent to the court, especially since he had been informed that two copies of all such letters had to be submitted.

Relying on Article 6 § 1 (right to a fair trial) Mr Kunert complains that the rejection of his appeal for failure to send an identical copy of the appeal to the court deprived him of the right of access to a court. Relying on Article 3 (prohibition of inhuman or degrading treatment) he further alleges that the conditions of his detention were inadequate, in particular owing to overcrowding.

[The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.](#)

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Name	Main application number
Azzopardi and Others v. Malta	16467/17
Aghmadi and Jaghubi v. the Netherlands	70475/14
A.D. and L.K. v. the Netherlands	71815/14
Heerawi v. the Netherlands	36558/14
Said v. the Netherlands	34299/14
Aydın and Others v. Turkey	63130/15
Karaca v. Turkey	5809/13
Kutlu and Others v. Turkey	18357/11

Taşdemir v. Turkey	52538/09
Borysov v. Ukraine	4870/09
Cherkun v. Ukraine	59184/09
Golubenko v. Ukraine	46928/07
Teleradiokompaniya NBM v. Ukraine	17114/08

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.